

August 21, 2026, Civil Law & Motion Tentative Rulings

1. CU0001483 Susan Gabrielle vs. Phillip G. Conlon, Jr.

The Court received the joint status report filed by the parties on July 15, 2026. Appearances are required by the parties to discuss the status of listing of the property. The Court is favorably inclined to set a further review on Friday, September 18, 2026, at 9:00 a.m. in Department 6.

2. CU0001901 Heather Miles v. Michael Smallwood

Defendant Michael Smallwood is ordered to appear on August 21, 2026, 10:00 a.m., Department 6, to show cause why trial should not be set and/or why it should not proceed without him, and to show why Plaintiff's motion for an order deeming matters admitted against him should not be granted. Further, Defendant Michael Smallwood is ordered to appear at the August 21, 2026, hearing in one of three ways: personally, remotely (by means authorized by the Court), or via counsel.

At the hearing, the Court will set further proceedings regarding trial, and will rule on Plaintiff's motion to deem matters admitted as indicated in the previously posted tentative decision, unless it finds at hearing that there is justification and good cause to not set trial and/or rule on the motion.

At the hearing, the Court will seek verification that Michael Smallwood has retained counsel to represent him in this action, and that Michael Smallwood has executed a written instrument to appointing an agent under power of attorney to act on his behalf with respect to this action including trial thereon.

3. CU0001813 USA Bath California Remodeling, Inc. vs. David Sweat

Attorney James L. Arrasmith's motion to be relieved as counsel is continued on the Court's motion to September 18, 2026, at 10:00 a.m., in Dept. 6. Counsel shall give notice to his client and all parties.

Legal Standard

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. *See Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Cal. Rules of Court, rule 3.1362(a), (c), (e). The requisite forms must be served "on the client and on all parties that have appeared in the case." Cal. Rules of Court, Rule 3.1362(d).

Analysis

Attorney Arrasmith represents Defendant David Sweat. Arrasmith moves to be relieved as counsel, citing a deterioration of the working relationship with his client and has filed the requisite required forms. Within the past 30 days of the request, Plaintiff's address was confirmed to be current by counsel through mail, return receipt requested. No opposition has been filed. The Court finds there to be proper grounds for withdrawal. *See Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014 (a breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw).

That said, there is no proof of service or anything on the record to show counsel has served all parties in this action as required by California Rules of Court, Rule 3.1362(d). Accordingly, notice is required prior to adjudication of the request.

The motion states the next hearing is set for May 22, 2026. However, the next hearing is now the motion for attorneys' fees following entry of judgment on October 9, 2026. Counsel shall ensure that his client is aware of the same.

4. CU0002229 Krystal Ukoh, et al. vs. State of California, et al.

On the Court's motion, the hearing on Plaintiffs' motion to compel further responses to request for production of documents ("RFPs") is continued to Friday, September 18, 2026, at 10:00 a.m. in Department 6, and the parties are directed to meet and confer as specified herein.

Legal Standard

An agreement to comply with a document demand must state whether the responding party will be complying "in whole or in part." Code Civ. Proc., § 2031.220. In addition, the response must indicate whether any documents are being withheld based on an asserted objection. Code Civ. Proc., § 2031.240(b).

On the other hand, Code of Civil Procedure section 2031.230 states:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

On receipt of the response to a document demand, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a